DV-105 Request for Child Custody and Visitation Orders

Case Number:

Instructions: Use this form to request orders for children you have with the person in 2. For more information on the orders you can request, read form **DV-105-INFO**, *Asking for Child Custody and Visitation Orders.*

This form is attached to form DV-100.

1 Your Information

Name: _____

Relationship to children: ☐ Parent ☐ Legal Guardian ☐ Other *(describe):* _____

2 Person You Want Protection From

Name: _____

Relationship to children: ☐ Parent ☐ Legal Guardian ☐ Other *(describe):* _____

3 Children Under 18 Years Old *(for children you have with the person in 2, list from oldest to youngest)*

a. Name: _____ Date of birth: _____

b. Name: _____ Date of birth: _____

c. Name: _____ Date of birth: _____

d. Name: _____ Date of birth: _____

☐ *(Check here if you need more space. Write "DV-105, Children" at the top and attach it to this form.)*

4 City and State Where Children Lived *(If you do not complete this section, the judge may not be able to make custody and visitation orders.)*

a. Have all the children listed in 3 lived together for the last five years?

☐ No *(If no, complete form DV-105(A). Do not complete the section below.)*

☐ Yes *(If yes, complete the section below.)*

b. List where the children have lived for the last five years. Start with their current location.

Dates *(month/year)*	**City and State** *(include tribal land, if applies)*	**Children lived with** *(check all that apply):* **Me**	**Person in 2**	**Other** *(relationship to child)*
From: _____ To present	_____ ☐ Check here if this address is private (confidential). List the state only.	☐	☐	☐ _____
From: _____ Until: _____	_____	☐	☐	☐ _____
From: _____ Until: _____	_____	☐	☐	☐ _____
From: _____ Until: _____	_____	☐	☐	☐ _____
From: _____ Until: _____	_____	☐	☐	☐ _____
From: _____ Until: _____	_____	☐	☐	☐ _____

This is not a Court Order.

5 History of Court Cases Involving Your Children

a. Do you know about any other case involving any child listed in 3?

☐ No

☐ Yes *(If yes, complete the section below):*

(Check all that apply. List where the case was filed (city, state, or tribe), year it was filed, and case number, if known.)

☐ Custody_____

☐ Divorce_____

☐ Juvenile Court *(child welfare, juvenile justice)*_____

☐ Guardianship_____

☐ Criminal_____

☐ Other *(example: child support case)*_____

b. Is there a current order for custody or visitation in effect?

☐ No

☐ Yes *(If yes, complete the section below):*

What did the judge order? *(Examples: who has custody of the children and what the visitation schedule is)*

_____

_____

_____

_____

_____

(Attach a copy of the order, if you have one.)

Why do you want to change the order?

_____

_____

_____

_____

_____

c. If there is another parent or legal guardian besides you and the person in 2, list their information below.

Name: _____ ☐ Parent ☐ Legal Guardian

This is not a Court Order.

Case Number:

Orders a Judge Can Make to Protect Your Children

To ask for orders to protect your children, answer the questions below.

6 Do you want to limit where the person in 2 can travel with your children?

☐ No

☐ Yes *(If yes, complete the section below):*

I ask the judge to order that the person in 2 must have written permission from me, or a court order, to take the children outside:

☐ The county of *(list):* _____

☐ California

☐ Other places *(list):* _____

7 Do you want the person in 2 to have access to the children's records or information?

☐ Yes

☐ No *(If no, complete the section below):*

a. I ask the judge to order that the person in 2 **not** access or have access to the records or information for:

☐ All the children listed in 3.

☐ Only the children listed here *(names):* _____

b. For the following records or information *(check all that apply):*

☐ Medical, dental, and mental health

☐ School and daycare

☐ Extracurricular activity, including summer camps and sports teams

☐ Child's employment (including volunteer and unpaid positions)

☐ Other *(describe):* _____

(If the judge makes this order, providers will not be able to release the protected information to the person in 2.)

8 Do you believe the person in 2 might abduct (kidnap) your children?

☐ No

☐ Yes *(To ask for orders to help prevent abduction, you must complete form DV-108,* Request for Orders to Prevent Child Abduction, *and attach it to this form.)*

This is not a Court Order.

Case Number:

Child Custody

You can ask a judge to make custody orders for your children. There are two types of custody in California: legal and physical custody. For both types of custody, parents can share custody (joint) or one parent can have full custody (sole).

- **Legal custody** means the person who makes decisions about the child's health, education, and welfare.
- **Physical custody** means the person who the child regularly lives with.

Any orders made by the judge now will last until your court date (about three weeks away). On your court date, the judge can change or extend the orders.

9 Do you want the judge to make child custody orders?

☐ No

☐ Yes *(If yes, complete the section below):*

Legal Custody *(check one):*

☐ Sole to me
☐ Sole to person in 2
☐ Jointly (shared) by me and person in 2
☐ Other *(describe):*

_____

Physical Custody *(check one):*

☐ Sole to me
☐ Sole to person in 2
☐ Jointly (shared) by me and person in 2
☐ Other *(describe):*

_____

Visitation (Parenting Time) with Children

Visitation (parenting time) is the time each parent spends with the child. If a parent does not get custody, that parent can have visits, if a judge believes it is safe and in the child's best interest. Visitation orders a judge can make include:

- No visits
- Virtual or in-person visits
- Visits supervised (monitored) by a third party
- Visits not supervised

Any orders made by the judge now will last until your court date (about three weeks away). On your court date, the judge can change or extend the orders. Answer the questions below to tell the judge what parenting time you want the person in 2 to have until your court date.

10 Do you want the person in 2 to have visits (parenting time) with the children?

☐ No, I ask the judge to order no visits for the person in 2 (*Stop here. You have finished completing this form.*)

☐ Yes *(Go to 11.)*

☐ Yes, but only virtual visits *(Go to 11.)*

11 Do you want visits with the children to be supervised (monitored) by a third party?

(To learn about supervised visitations, go to selfhelp.courts.ca.gov/guide-supervised-visitation.*)*

☐ Yes *(Go to 12.)*

☐ No *(Go to 13.)*

This is not a Court Order.

Case Number:

12 Details of Supervised (Monitored) Visits

a. **Who do you want to supervise the visits?** *(check one):*

(1) ☐ Professional *(list name, if known):* _____

Professional fees paid by: Me ____ % Person in 2 ____ % Other: _____ ____ %

(2) ☐ Nonprofessional, like a trusted relative or friend
(Name): _____ ☐ Check here if the person has agreed to supervise visits.

b. **Location of visits** *(check one):* ☐ In person at a safe location ☐ Virtual visit (not in person)
☐ Other *(describe):* _____

c. **How often and how long should the visits be?** *(check one):*

☐ Once a week, for *(number of hours):* _____
☐ Twice a week, for *(number of hours):* _____ each visit.
☐ Other *(describe):* _____
☐ Check here if you want to use the chart listed below for a schedule.

Plan for Supervised Visits	Time	Virtual visit with person in 2	Person to bring children to and from visit *(or make available for virtual visit)*	Location of drop-off/pick-up
Monday	Start: End, if applies:	☐		
Tuesday	Start: End, if applies:	☐		
Wednesday	Start: End, if applies:	☐		
Thursday	Start: End, if applies:	☐		
Friday	Start: End, if applies:	☐		
Saturday	Start: End, if applies:	☐		
Sunday	Start: End, if applies:	☐		

Follow the plan listed above *(check one):*
☐ Every week ☐ Every other week ☐ Other _____

Start date for visits *(month, day, year):* _____

(If you completed 12, you are done completing this form. Do not complete 13.)

This is not a Court Order.

Case Number:

13 Details of Unsupervised Visits

a. If the judge allows the person in 2 to have unsupervised visits with your children, you will have to tell the judge how you want to handle drop-off and pick-up of the children, also called exchanges.

Do you want exchanges to be supervised by a third party?

☐ No ☐ Yes *(If yes, do you want a professional or nonprofessional to supervise? Check 1 or 2)*

(1) ☐ Professional *(list name, if known):* _____

Professional fees paid by: Me ____ % Person in 2 ____ % Other: _____ ____ %

(2) ☐ Nonprofessional, like a trusted relative or friend

(Name): _____ ☐ Check here if the person has agreed to supervise visits.

b. **Parenting time you want the person in 2 to have with the children.**

(1) Location of visits *(check one):* ☐ In person at a safe location ☐ Virtual visit (not in person)

☐ Other *(describe):* _____

(2) Give details including when visits will happen, how often the visits should be, and who will be responsible for transporting the children. *(Use the lines or chart below):*

_____

_____

Plan for Unsupervised Visits	Time	Virtual visit with person in 2	Person to bring children to and from visit *(or make available for virtual visit)*	Location of drop-off/pick-up
Monday	Start: End, if applies:	☐		
Tuesday	Start: End, if applies:	☐		
Wednesday	Start: End, if applies:	☐		
Thursday	Start: End, if applies:	☐		
Friday	Start: End, if applies:	☐		
Saturday	Start: End, if applies:	☐		
Sunday	Start: End, if applies:	☐		

Follow the schedule listed above *(check one):*

☐ Every week ☐ Every other week ☐ Other _____

Start date for visits *(month, day, year):* _____

This is not a Court Order.

DV-108 Request for Orders to Prevent Child Abduction

Case Number:

This form is attached to DV-105, *Request for Child Custody and Visitation Orders.*

(Use this form to ask for protection if you believe that the person in 2 might take the children without your permission and hide them from you.)

1 **Your Name:** _____

2 **Name of Person You Want Protection From:** _____

3 **Reasons I Am Afraid of Child Abduction**

(In this section, explain to the judge why you believe there is a risk that the person in 2 will take your children without your permission and hide them from you. The judge will use the information below to decide whether to grant any orders you request on page 2.)

The person in 2 *(check all that apply):*

a. ☐ Has violated or threatened to violate a custody or visitation order.

b. ☐ Does not have strong ties to California.

c. ☐ Has done things recently that make it easy to take our children, like *(check all that apply):*

- ☐ Quit a job
- ☐ Closed a bank account
- ☐ Sold or gotten rid of property
- ☐ Sold a home or ended a lease
- ☐ Applied for a passport, birth certificate, or school or medical records
- ☐ Hidden or destroyed documents
- ☐ Other *(explain):* _____

d. ☐ Has a history of:

- ☐ Abusing me
- ☐ Child abuse
- ☐ Abusing other partners
- ☐ Taking away or hiding our children from me
- ☐ Threatening to take away or hide our children from me
- ☐ Not cooperating with me in parenting

e. ☐ Has a criminal record

f. ☐ Has strong ties in:

- ☐ Another county in California *(list county):* _____
- ☐ Another state *(list state):* _____
- ☐ Another country *(list country):* _____

g. ☐ Is a citizen of another country *(list country or countries):* _____

Does the person in 2 have strong family, cultural, or emotional ties to that country? ☐ Yes ☐ No

Give examples or reasons for your answers above:

_____

_____

_____

_____

The statements made above are made under penalty of perjury as declared on the request form (DV-100, 32).

This is not a Court Order.

Case Number:

Orders a Judge Can Make to Prevent Abduction

In this section, you can ask for orders to prevent the person in 2 from abducting (kidnapping) your children.

Check all the orders that you want a judge to make (order).

4 ☐ **Do Not Move With Children Without Permission**

I ask the judge to order that the person in 2 not move with our children without my written permission or the judge's permission.

5 ☐ **Turn In and Do Not Apply for Passports or Other Important Documents**

I ask the judge to order the person in 2 to not apply for passports or other documents that can be used for travel, like visas and birth certificates, and to turn in the following documents:_____

by *(date):* _____ to *(name of person to give documents to):* _____

6 ☐ **Provide Travel Plan and Documents**

If the person in 2 is allowed to travel with our children, the person in 2 should be ordered to give me:

(Check all that apply.)

☐ Children's travel schedule
☐ Copies of round-trip airline tickets
☐ Addresses and telephone numbers where the children can be reached
☐ An open airline ticket for me in case the children are not returned.
☐ Other *(describe):* _____

7 ☐ **Notify Other State of Travel Restrictions**

I ask the judge to order the person in 2 to register this order with *(list county and state):* _____ before the children can travel to that state for visits.

8 ☐ **Notify Foreign Embassy or Consulate of Passport Restrictions**

I ask the judge to order the person in 2 to notify *(name of embassy or consulate):* _____ of this order and to file proof of the notification with the court by *(date):* _____

9 ☐ **Foreign Custody and Visitation Order**

I ask the judge to order the person in 2 to get a custody and visitation order equal to the most recent U.S. order before the child can travel to *(list country):* _____ for visits.
(Note that foreign orders may be changed or enforced depending on the laws of the country.)

10 ☐ **Post a Bond**

I ask the judge to order the person in 2 to post a bond for $ _____.
If the person in 2 takes the children without my permission, I can use this money to bring the children back.

This is not a Court Order.

DV-140 Child Custody and Visitation Order

Case Number:

This form is attached to *(check one):* ☐ Form DV-110 ☐ Form DV-130 ☐ Form DV-310

1 Name of Protected Person: _____

Relationship to children: ☐ Parent ☐ Legal Guardian ☐ Other *(describe):* _____

2 Name of Restrained Person: _____

Relationship to children: ☐ Parent ☐ Legal Guardian ☐ Other *(describe):* _____

3 ☐ Children Under 18 Years Old

a. Name: _____ Date of birth: _____

b. Name: _____ Date of birth: _____

c. Name: _____ Date of birth: _____

d. Name: _____ Date of birth: _____

☐ (Check here if you have more children to list. On a separate piece of paper write "DV-140, Children" at the top and attach it to this form.)

4 ☐ No Travel With Children Without Permission

☐ Person in 1 ☐ Person in 2 ☐ Other *(name):* _____

must have written permission from the other parent, or a court order, to take the children outside of:

a. ☐ County of *(list):* _____

b. ☐ State of California

c. ☐ United States

d. ☐ Other place(s) *(list):* _____

This is a Court Order.

5 ☐ Stop Access to Children's School, Health, and Other Information

a. The person in 2 must not access or have access to the records or information for:

☐ All the children listed in 3.

☐ Only the children listed here *(names):* _____

b. From the following *(check all that apply):*

☐ Medical, dental, and mental health providers

☐ School and daycare providers

☐ Extracurricular activity providers (including summer camps and sports teams)

☐ Child's employers (including volunteer and unpaid positions)

☐ Other *(describe):* _____

! If you are a provider listed above, you must not release information or records regarding the children listed in 5a to the person in 2.

6 ☐ Judge's Decision on Request for Orders to Prevent Child Abduction *(attach form DV-145)*

7 ☐ Child Custody

a. Legal Custody *(The person who makes decisions about the child's health, education, and welfare.)*

☐ Sole to Person in 1

☐ Sole to Person in 2

☐ Jointly (shared) by persons in 1 and 2

☐ Other *(describe):* _____

b. Physical Custody *(The person who the child regularly lives with.)*

☐ Sole to Person in 1

☐ Sole to Person in 2

☐ Jointly (shared) by persons in 1 and 2

☐ Other *(describe):* _____

Visitation (Parenting Time) With Children *(See 8–15.)*

8 ☐ Person in 2 must have no visitation with the children in 3 until further order of the court.

(If this form is attached to form DV-110, *Temporary Restraining Order*, this means that the judge has stopped your right to visit with your children temporarily. If you do not agree with this order, attend your court hearing.)

This is a Court Order.

9 ☐ Professional Supervised (Monitored) Visits With Children

a. Person to be supervised: ☐ Person in 1 ☐ Person in 2

b. Professional provider to supervise visits *(check 1, 2, or 3):*

(1) ☐ Chosen provider: _____ Telephone: _____

Address *(if known):* _____

If the chosen provider cannot provide services, parties must use the alternate provider.

Alternate provider: _____ Telephone: _____

Address *(if known):* _____

Person in 1 must contact chosen provider by *(date):* _____

Person in 2 must contact chosen provider by *(date):* _____

(2) ☐ A list of providers *(check one):*

☐ is attached to this order.

☐ given in court to ☐ Person in 1 ☐ Person in 2 .

☐ Person in 1 ☐ Person in 2 must choose and contact a provider by *(date):* _____

(3) ☐ Other: _____

_____

c. Frequency of visits *(check one):*

☐ Once a week, for *(number of hours):* _____ each visit.

☐ Twice a week, for *(number of hours):* _____ each visit.

☐ Other *(describe):* _____

d. Fees paid by: Person in 1 _____ % Person in 2 _____ % Other _____ _____ %

e. Visits must be:

☐ In person at a safe location.

☐ Virtual (not in person). *(Before a provider is chosen, confirm that the provider offers virtual visits.)*

☐ Other: _____

This is a Court Order.

10 ☐ Nonprofessional Supervised (Monitored) Visits With Children

a. Person to be supervised: ☐ Person in 1 ☐ Person in 2

b. Nonprofessional provider (person) to supervise visits

Name: _____ Relationship to child: _____

Address *(if known)*: _____ Telephone *(if known)*: _____

c. Schedule for visits *(check one)*:

☐ Follow the Visitation Plan listed in 13.

☐ Other schedule *(give a detailed schedule)*: _____

_____

d. Location of visits:

☐ In person at a safe location *(give location)*: _____

☐ Virtual (not in person). *(Provider, child, and visiting parent may need access to internet.)*

☐ Other: _____

(For more information on safe locations and virtual visits, go to selfhelp.courts.ca.gov/guide-supervised-visitation.*)*

11 ☐ Supervised Exchanges (Drop-Off and Pick-up of Children)

(Complete this item and go to 12 to describe visitation plan.)

a. Person to be supervised: ☐ Person in 1 ☐ Person in 2

b. Provider (Person) to Supervise Exchanges

(1) ☐ Professional Provider

Name of provider *(if known)*: _____

Address *(if known)*: _____

Telephone *(if known)*: _____

Fees paid by: Person in 1 ____ % Person in 2 ____ % Other _____ ____ %

Person in 1 must contact provider by *(date)*: _____

Person in 2 must contact provider by *(date)*: _____

Location of exchanges to be decided by provider.

(2) ☐ Nonprofessional Provider

Name: _____ Relationship to child: _____

Address *(if known)*: _____

Telephone *(if known)*: _____

Safe location for exchanges: _____

(For more information on safe locations, go to selfhelp.courts.ca.gov/guide-supervised-visitation.*)*

This is a Court Order.

Case Number:

12 ☐ Visits With No Supervision (Unmonitored)

a. ☐ Person in 1 ☐ Person in 2 will visit with the children listed in 3

b. Visits must be:

☐ In person

☐ Virtual *(not in person) (Child and visiting parent may need access to the internet. For more information on virtual visits, go to* selfhelp.courts.ca.gov/domestic-violence-child-custody*.)*

☐ Other: _____

c. The visitation plan is *(check one):*

☐ Listed in 13.

☐ Described below:

_____

_____

_____

_____

13 ☐ Visitation Plan for Person in 2

	Time	Visit must be virtual	Person to bring children to and from visit *(or make child available for virtual visit)*	Location of drop-off/pick-up
Monday	Start: End, if applies:	☐		
Tuesday	Start: End, if applies:	☐		
Wednesday	Start: End, if applies:	☐		
Thursday	Start: End, if applies:	☐		
Friday	Start: End, if applies:	☐		
Saturday	Start: End, if applies:	☐		
Sunday	Start: End, if applies:	☐		

Follow the plan listed above *(check one):*

☐ Every week ☐ Every other week ☐ Other _____

Start date for visits *(month, day, year):* _____

This is a Court Order.

14 Mandatory Findings

(Findings required under Family Code sections 3011, 3044, and 3100.)

a. ☐ No findings required by law

b. ☐ Findings required by law

(1) ☐ The court has made the required findings. The court's reasons are in writing *(check one):*

☐ On form DV-150, *Mandatory Findings for Child Custody and Visitation Order*.

☐ Other: _____

(2) ☐ The court has made the required findings. The court's reasons were recorded *(check all that apply):*

☐ In a minute order ☐ By a court reporter ☐ Other: _____

15 ☐ Other Orders

Describe additional orders in the space below or use a separate attachment (e.g., FL-341(C), *Children's Holiday Schedule Attachment*).

_____

_____

16 ☐ Criminal Protective Order

List any criminal protective order protecting the person in 1 or any child in 3 from the person in 2.

Case number: _____ County: _____

Case number: _____ County: _____

(*If a criminal protective order is in effect, law enforcement must follow the priority of enforcement on form DV-110 or DV-130.*)

17 Country of Habitual Residence

The country of habitual residence of the child or children in this case is *(check one):*

☐ The United States,

☐ Other *(name of country):* _____ .

18 Jurisdiction and Notice

This court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act (part 3 of the California Family Code starting with section 3400). The responding party was given notice consistent with the laws of the State of California.

19 Penalties for Violating This Order

If you violate this order, you may be subject to civil or criminal penalties, or both.

This is a Court Order.

DV-145 Order to Prevent Child Abduction

Case Number:

This form is attached to DV-140, *Child Custody and Visitation Order.*

1 Name of Protected Person: _____

Relationship to children: ☐ Parent ☐ Legal Guardian ☐ Other *(describe):* _____

2 Name of Restrained Person: _____

Relationship to children: ☐ Parent ☐ Legal Guardian ☐ Other *(describe):* _____

3 Court's Decision

Based on the information given, the judge finds that:

a. ☐ **There is not a risk** that the person in 2 might take the children without proper permission. The judge has not granted any of the orders in 4–12.

b. ☐ **There is a risk** that the person in 2 might take the children without permission because person in 2:

(Check all that apply):

(1) ☐ Has violated or threatened to violate a custody or visitation order.

(2) ☐ Does not have strong ties to California.

(3) ☐ Has done things recently that make it easy to take the children *(check all that apply):*

- ☐ Quit a job
- ☐ Closed a bank account
- ☐ Sold or gotten rid of property
- ☐ Sold a home or ended a lease
- ☐ Hidden or destroyed documents
- ☐ Applied for a passport, birth certificate, or school or medical records

(4) ☐ Has a history of *(check all that apply):*

- ☐ Abusing person in 1
- ☐ Abusing other partners
- ☐ Child abuse
- ☐ Taking the children without permission
- ☐ Not cooperating with person 1 in parenting

(5) ☐ Has a criminal record

(6) ☐ Has strong ties in:

- ☐ Another county in California *(list county):* _____
- ☐ Another state *(list states):* _____
- ☐ Another country *(list country):* _____

(7) ☐ Is a citizen of another country *(list country):* _____

(8) ☐ Other reasons: _____

_____

_____

The Orders are Granted as Follows:

4 ☐ Do Not Move Without Written Permission of the Other Parent or Court Order

The person in 2 must ***not*** move with the children outside

☐ This county ☐ California ☐ The United States Other *(specify):* _____

without written permission from the other parent or a court order.

This is a Court Order.

Case Number:

5 ☐ Turn In and Do Not Apply for Passports or Other Important Documents

Person in 2 must not apply for passports or other documents that can be used for travel, like visas and birth certificates, and must turn in the following documents: _____

by *(date):* _____ to *(name):* _____

6 ☐ Provide Travel Plan and Documents

Person in 2 must give the person in 1 the following before traveling with the children *(check all that apply):*

☐ Children's travel schedule
☐ Copies of round-trip airline tickets
☐ Addresses and telephone numbers where children can be reached
☐ An open airline ticket for the person in 1 in case the children are not returned
☐ Other *(describe):* _____

7 ☐ Notify Other State of Travel Restrictions

Person in 2 must register this order with *(list county and state):* _____ before the children can travel to that state for visits.

8 ☐ Notify Foreign Embassy or Consulate of Passport Restrictions

Person in 2 must notify *(name of embassy or consulate):* _____ of this order and provide the court with proof of the notice by *(date):* _____

9 ☐ Foreign Custody and Visitation Order

Person in 2 must get a custody and visitation order equal to the most recent U.S. order before the children can travel to *(list country):* _____ for visits.
The court recognizes that foreign orders may be changed or enforced depending on the laws of that country.

10 ☐ Post a Bond

The person in 2 must post a bond for $_____.

11 ☐ Enforcing Order

The court authorizes any law enforcement officer to enforce this order. In this county, contact the Child Abduction Unit of the Office of the District Attorney at: _____

12 ☐ Other *(list other orders or jurisdictional factors):* _____

_____

Notice to Authorities in Other States and Countries: This court has jurisdiction to make child custody orders under California's Uniform Child Custody Jurisdiction and Enforcement Act (California Family Code, part 3, section 3400 et seq.) and The Hague Convention on the Civil Aspects of International Child Abduction (22 U.S.C. section 9001 et seq.). If jurisdiction is based on other factors, they will be listed above in 12.

This is a Court Order.